

Justification for Other than Full and Open Competition (JOFOC)
FCI Jesup

Pursuant to the Federal Acquisition Regulations (FAR) Subpart 6.302-2(a)(2), and the Bureau of Prison Acquisition Policy (BPAP) 6.304(c), the Federal Bureau of Prisons (FBOP) has determined that the procurement of Replace AHU #19 in Medical for the Federal Correctional Institution (FCI), located in Jesup, GA, meets the criteria established for other than full and open competition. It is further determined that this requirement is of an unusual and compelling urgency that delay in award of a contract would result in serious injury, financial, or other, to the Government. This limitation on competition is justified as supported by the following information:

1. Identification of the agency and the contracting activity, and specific identification of the document as a "Justification for other than full and open competition":

Federal Bureau of Prisons
Federal Correctional Institution Jesup (FCI Jesup)
2600 Hwy 301 South
Jesup, GA 31599

2. Nature and/or description of the action being approved:

This upgrade aims to enhance the HVAC system at FCI Jesup, ensuring optimal air quality in the medical facility. By selecting Boan Mechanical for the replacement of AHU #19, a firm-fixed-price contract guarantees a seamless supply and installation process. This decision prioritizes efficiency and reliability in maintaining a conducive environment for medical operations at the institution.

3. Description of the services required to meet the agency's needs:

In meeting the mission critical needs and ensuring the health and safety of the Federal AICs remains paramount, and swift action is crucial to replace the air handling units (AHUs) in the prison facility. By providing proper air change, filtration, and ventilation, these new AHUs will significantly reduce the risk of airborne diseases spreading within the population. With an estimated cost of \$249,860.00, this project is a vital investment in safeguarding the well-being of all individuals in custody and maintaining a healthy environment within the facility.

4. An identification of the statutory authority permitting other than full and open competition:

The statutory authority permitting other than full and open competition is

The statutory authority that allows for competition other than full and open is defined by 41 U.S.C. 3304(a)(2) and further detailed in FAR 6.302-2 regarding Unusual and Compelling Urgency. According to FAR 6.302-2(a)(2), this provision applies in circumstances where the agency's demand for goods or services is so urgent and exceptional that the Government would face significant harm if it were required to seek bids or proposals from multiple sources. In such cases, the agency can restrict the number of sources involved, thus bypassing the need for full and open competition.

5. A demonstration that the proposed contractor's unique qualification or the nature of the acquisitions requires use of the authority cited:
With a commitment to quality and customer satisfaction, Boen Mechanical leverages its expertise to identify and implement optimal solutions that not only address immediate mechanical needs but also ensure long-term efficiency and reliability. Their approach encompasses detailed project assessments, innovative strategies, and a dedication to minimizing downtime, thereby enhancing overall operational productivity. Choosing Boen Mechanical for your mechanical contracting needs guarantees access to skilled professionals who understand the intricacies of installation and modification processes. Their proven track record positions them as an ideal partner in overcoming the challenges associated with mechanical systems, ensuring that the project is completed within scope, budget, and schedule.
6. A description of efforts made to ensure that offers are solicited from as many potential sources as practicable, including whether a notice was or will be publicized as required by subpart 5.2: The purpose of this memorandum is to provide a formal justification for the proposed contract action to be conducted under the specific conditions outlined in FAR 6.302-2, which allows for a limited competition when urgency dictates immediate action. In accordance with FAR 5.202(a)(2), we are invoking an exception that permits us to forego the standard synopsis requirements due to the unique circumstances surrounding this acquisition. The agency has assessed that adhering to the time frames set forth in FAR 5.203 would result in serious injury to the Government. This conclusion is supported by the nature of the requirement, which is classified as an unusual and compelling urgent acquisition. The potential consequences of any delay—whether financial, operational, or otherwise—could jeopardize the Government's interests and hinder its ability to meet critical objectives. Given the pressing nature of this acquisition, we determine that not synthesizing this action is essential in order to facilitate a prompt response that aligns with the Government's urgent needs. Therefore, we respectfully request approval to proceed without the required synopsis, thereby allowing for swift procurement actions vital for maintaining operational readiness.

7. A determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable: Following the technical evaluation conducted by the Southeast Regional Facilities department and considering the prior proposals submitted for the Federal Bureau of Prisons (FBOP) project, the Contracting Officer anticipates that the proposed costs to the Government will be fair and reasonable. This assessment is in accordance with the guidelines outlined in FAR 15.404-1(b)(2)(ii), which emphasizes the importance of comparing proposed prices to historical prices previously paid. In light of this, we would like to highlight Boanen Mechanical's qualifications in this context. Boanen Mechanical possesses the requisite knowledge and technical capability to successfully install the new Carrier air handler unit, model 39MN size 21W, which is equipped with stand-alone controls. This installation is crucial for restoring optimal functionality to the medical building's heating, ventilation, and air conditioning systems. The anticipated engagement with Boanen Mechanical aligns with our commitment to ensuring that the facilities operate at peak efficiency, thus supporting the overarching goals of the FBOP initiative. Their proven track record and specialized expertise in HVAC systems position them as a reliable contractor for this undertaking.
8. A description of the market research conducted and the results or a statement of the reason market research was not conducted: As we assess the current situation regarding the provision of essential services, it has become evident that conducting a market survey is not feasible at this time. The urgency and significance of delivering these services require immediate action and implementation, which cannot be delayed by lengthy data collection processes commonly associated with surveys. The pressing nature of our needs, coupled with the unique circumstances outlined in previous sections, highlights the necessity of prioritizing swift decision-making over extensive research. While a market survey could provide valuable insights under normal conditions, the current urgency limits our capacity to engage in this methodological approach without compromising service delivery.
9. Any other facts supporting the use of other than full and open competition: The existing medical air handler unit has reached a critical juncture in its operational lifecycle. Delaying its replacement could lead to significant risks, including potential injuries to staff and patients due to compromised air quality and ventilation. Such incidents not only jeopardize the health of individuals but may also result in increased financial burdens on the Government, arising from liability claims, and costly emergency interventions.
10. A listing of sources, if any that expressed, in writing, an interest in the acquisition: There are no alternative sources readily accessible that can deliver services within the necessary time constraints.

11. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before subsequent acquisition for the required services: FCI Jesup will persist in observing market trends within the industry to identify competitors or sources capable of fulfilling the Government's future non-urgent requirements. For upcoming acquisitions, the agency will prioritize advance planning to reduce the necessity for urgent procurements, which will encompass ongoing evaluations of facility conditions.

12. Contracting Officer's certification that the justification is accurate and complete to the best of the Contracting Officer's knowledge and belief: I formally certify that the request for approval of this Justification for Other Than Full and Open competition is submitted in good faith. To the best of my knowledge, the supporting data and information provided are accurate and complete. Additionally, I affirm that this request does not stem from inadequate advance procurement planning.

Submitted by:

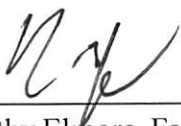


Christopher Parker, Contracting Officer
FCI Jesup

3-24-25

Date

I hereby certify that the supporting data provided by the technical and requirements personnel which form the basis for this justification is complete and accurate to the best of my knowledge and belief.

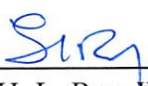


Timothy Elmore, Facilities Manager
FCI Jesup

3/24/25

Date

Concurrence:



H. L. Ray, Warden
FCI Jesup

3/24/25

Date